

fide arising, justices are ousted of their jurisdiction to convict summarily. In Paley's Law and Practice of Summary Convictions, 3d ed., p. 28, it is said, "Where property or title is in question, the jurisdiction of justices of the peace to hear and determine in a summary manner is ousted, and their hands tied from interfering, though the facts be such as they have otherwise authority to take cognizance of." The editor mentions this rule as not arising from any legislative enactment, but as the old legal maxim applicable to summary trials in general. Being an old maxim of law, which has been so generally applied for ages, we must assume that it is still intended to be applied by every Act relating to such matters, though not specifically mentioned. I cannot think that the provision in sect. 30 of 1 & 2 W. 4, c. 32, is intended to abrogate that great principle of law in the case of trespasses in pursuit of game. It may mean that, if the defendant so insists, the justices must try and determine his title to the land: but it can mean no more. It [872] struck me however, during the argument, that it was only applicable to such defences as, in a civil suit for a trespass on lands, are pleaded by way of excuse, such for instance as leave and licence. It would be very difficult to try a title to land before such a tribunal. I cannot think that it was intended to abrogate the old rule against the will of a defendant. According to the old and general rule, it seems to me that justices have jurisdiction to try the fact whether the claim is *bonâ fide* made; but, if it is, they have no jurisdiction to inquire into any further fact. In this case it was clear that there was a *bonâ fide* claim of title. The jurisdiction was thereupon ousted; and the conviction must be quashed.

Conviction quashed (a).

**HARTLEY against PONSONBY.** Thursday, June 4th, 1857. A vessel, in consequence of the desertion of some of the seamen, was left short of hands in harbour, before the voyage was completed. The master, to induce the remaining seamen to perform the rest of the voyage, promised to pay them a sum of money in addition to their wages. They accordingly performed the rest of the voyage with the diminished number of hands.—On an action by one of the seamen against the master for the sum promised, the jury found that he made the agreement without coercion, for the best interests of the owners; that he could not have obtained additional hands at a reasonable price; and that it was unreasonable for so large a ship to proceed on the completion of the voyage with the diminished number of hands.—Held, that on this finding, which the Court understood to mean that it was unsafe so to proceed, the plaintiff was entitled to recover, as the seamen were not bound, by their original contract of service, to proceed with the diminished number of hands; and their undertaking to do so was therefore a good consideration for the master's promise.

[S. C. 26 L. J. Q. B. 322; 3 Jur. N. S. 746; 5 W. R. 659.]

The first count of the declaration alleged that defendant promised plaintiff to pay to plaintiff in Liverpool 40l., provided plaintiff would assist in [873] taking the ship "Mobile" from the port of Port Philip in Australia to Bombay in the East Indies, with a crew of nineteen hands. Averment: that, before this suit, he performed all things on his part to be performed to entitle him to the payment of the said sum of 40l., according to the terms and true intent and meaning of the said promise of defendant; of which defendant had notice: and a reasonable time for the payment thereof elapsed before this suit. Breach: that defendant had not paid the same or any part thereof.

Pleas. 1. Non assumpsit. 2. To first count: That, by virtue of certain ship's articles made and entered into between plaintiff and defendant, and signed by plaintiff, and which were in force at the times in the first count mentioned, plaintiff, at the times aforesaid, was bound, if required by defendant to perform, and defendant, at the said times, had a right to require plaintiff to perform, the matter mentioned or referred to in the said first count as the consideration for the supposed promise: and there was no consideration for defendant's making or performing the supposed promise.

Issues on these pleas.

On the trial, before Erle J., at the London Sittings after last Hilary Term, it appeared that the defendant was captain of The "Mobile," a ship of 1045 tons register. The plaintiff was a mariner in the ship. The mariners, by their articles, agreed to serve on board the ship "on a voyage from Liverpool to Port Philip, from thence (if required) to any ports and places in the Pacific Ocean, Indian or China Seas, or wherein freight may offer, with liberty to call at a port for orders, and until her return to a final port of discharge in the United Kingdom: or for a term not to exceed three years." The wages [874] of the plaintiff were to be 3l. per month. The proper complement of men was thirty six. The three years would expire in July 1855. The ship left Liverpool, and reached Port Philip in Australia on 9th October 1852. While she was at Port Philip, seventeen of the crew refused to work, and were sent to prison. Among the remaining nineteen, there were only four or five able seamen. The master proposed to sail for Bombay: and, to induce the remaining crew to take the ship to Bombay, he promised to pay to some of them a sum in addition to their wages: and he gave to the plaintiff a written promise, which was as follows.

"Port Philip, 18 October, 1852.

"I promise to pay, in Liverpool, to Robert Hartley the sum of forty pounds sterling, provided he assist in taking ship 'Mobile' from this port to Bombay with a crew of nineteen hands.—As witness my hand."

(Signed) "HENRY PONSONBY."

A similar note was given to eight other seamen. Contradictory evidence was given as to what passed between the defendant and the seamen at the time of this agreement being made, and as to the facility of hiring fresh seamen at Port Philip. The ship set sail for Bombay, where she arrived on 31st December 1852. She encountered much rough weather on the voyage, in consequence of which, and of the shortness of hands, extraordinary labour fell upon the crew. At Bombay additional hands were taken on board. The "Mobile" sailed for Liverpool on 14th February 1853, and arrived there on 14th June 1853. The owners and the master refused to pay the seamen more than the wages originally contracted for: and this action was brought against the [875] master for the 40l. Evidence was given as to the unfitness of so small a crew as nineteen to navigate the ship. The learned Judge put three questions to the jury. First: Whether the defendant made the agreement voluntarily: to which the jury answered that he did so, and not by coercion; and that this was for the best interests of the owners. Secondly: whether the defendant could, by reasonable exertions, obtain more hands at Port Philip: to which the jury answered that he could not have done so at a reasonable price. Thirdly: whether it was unreasonable or unsafe to proceed on the voyage to Bombay with so few hands: to which the jury answered that they considered it unreasonable for a vessel of 1045 tons to proceed on that voyage with only nineteen hands. His Lordship then directed a verdict for the plaintiff, reserving leave to move to enter a verdict for the defendant.

Knowles, in last Easter Term, obtained a rule to shew cause why a verdict should not be entered for the defendant, "on the ground that the finding of the jury amounted to a verdict for the defendant; or why a new trial should not be had between the parties, on the ground that the evidence given at the trial shewed that the plaintiff was not entitled to recover."

Hugh Hill and C. Milward now shewed cause. It appears that the captain, at the time when he made the contract, was striving to persuade the crew to undertake a risk which they were not bound to undertake: a sufficient consideration therefore arises from their undertaking it. It is undoubtedly true that, if an irremediable emergency arises in the course of a voyage, as, for instance, if a large part of the crew are washed [876] overboard, the crew on board are bound to perform so much more of their ordinary duty as may have become necessary for the completion of the voyage; and a promise to pay them for the performance of such extraordinary duty would be without consideration, or contrary to the policy of the law. But that rule is inapplicable to a case when a British ship is in a British harbour, and, for want of a sufficient number of hands, is in fact unseaworthy. A refusal to put to sea in an unseaworthy ship is no desertion of the ship; that was ruled at Nisi prius by

Crowder J. in a case of *Davidson v. Todhunter* (Liverpool Summer Assizes, 1855). So, if the master, by unwarrantable severity, compel a seaman to quit the ship; *Limland v. Stephens* (3 Esp. 269), *Edward v. Trevellick* (4 E. & B. 59). So, if the master do not supply the seamen with provisions: *The Castilia (Stewart)* (1 Hag. Rep. Adm. 59); or if he alter the mariners' contract in respect of the voyage to be performed; *The Eliza (Ireland)* (1 Hag. Rep. Adm. 182). The only question here is whether there was an irremediable emergency. Now there is nothing to shew that, by waiting a reasonable time, a sufficiency of hands might not have been procured. The captain himself proposed the extra pay; which at any rate shews his view of the obligation of the seamen.

Knowles and Aspland, contra. The agreement of the captain cannot be considered to have been voluntary: the jury have indeed found that it was; which may be true in a vague and popular sense of the word: but, legally speaking, the refusal of the crew to proceed was a compulsion. [Coleridge J. It should seem that, if [877] the circumstances excused the crew from going to sea, they also excused the captain from going.] The case is like *Harris v. Carter (a)*, where it was held that a seaman was not relieved from his duty, so as to enable him to make a fresh contract, by the desertion or discharge of some of the hands. [C. Milward. There the plaintiff failed because it could not be shewn that the ship had become unseaworthy.] Here no more appears than that the desertion imposed additional labour on those who remained. *Harris v. Watson* (1 Peake's N. P. C. 72) is an authority for the defendant; there the action was against the captain, as here. In *The Eliza (Ireland)* (1 Hag. Rep. Adm. 182) the original contract was put an end to by the master. But in *The Araminta (Feran)* (1 Spinks' Ecc. & Adm. Rep. 224), where, upon some of the crew deserting at Geelong in Australia, the captain proposed to the remaining crew that they should take the ship on, she being then short-handed, for additional wages, to which they assented, it was held that such additional wages could not be contracted for, and that, if they were paid, they might be deducted from the wages due on the original contract.

Lord Campbell C.J. I think that this verdict should stand. The answer given by the jury to the third question imports to my mind that for the ship to go to sea with so few hands was dangerous to life. If so, it was not incumbent on the plaintiff to perform the work; and he was in the condition of a free man. There was therefore a consideration for the contract; and the captain made it without coercion. This is [878] therefore a voluntary agreement upon sufficient consideration. This decision will not conflict with any former decisions. In *The Araminta (Feran)* (1 Spinks' Ecc. & Adm. Rep. 229) Dr. Lushington says: "I do not wish it to be inferred from anything I now say, that mariners, having completed the voyage outwards, are compellable to make the return voyage when the number of the crew is so small that risk of life may be incurred." In *Harris v. Carter* (3 E. & B. 559) there was no such risk. As to the weight of evidence, the evidence was conflicting: but my brother Erle is not dissatisfied with the verdict.

Coleridge J. I am of the same opinion, and for the same reasons. I understand the finding of the jury to be, that the ship was unseaworthy; and that, owing to the excessive labour which would be imposed, it was not reasonable to require the mariners to go to sea. If they were not bound to go, they were free to make a new contract: and the master was justified in hiring them on the best terms he could make. It may be that the plaintiff took advantage of his position to make a hard bargain; but there was no duress.

Erle J. I am of the same opinion. I was deeply impressed with the consequence of not holding the plaintiff liable to perform his original engagement. But there is a point of danger at which it becomes unreasonable for mariners to be required to go on. That is a question for a jury. The mariners, not being bound to go on, were to all intents and purposes free, and might make the best contract they could.

[879] Crompton J. The jury have found that this was a free bargain. As regards public policy, it would be very dangerous to lay down that, under all circumstances and at any risk of life, seamen are bound to proceed on a voyage. The jury have found in this case (and, I think, upon the evidence, correctly,) that it was not reasonable to require the seamen to go on. Where, from a ship being short-handed, it would be

(a) 3 E. & B. 559. See *Stilk v. Myrick*, 2 Campb. 317.

unsafe for the seamen to go to sea, they become free to make any new contract that they like.

Rule discharged.

**SUMMERS against SAMUEL SOLOMON.** Thursday, June 4th, 1857. Defendant had a jeweller's shop at Lewes, he residing near London; the business at Lewes was managed by A., who, by defendant's authority, was in the habit of giving orders at Lewes, verbally and by letter, for goods to be sent to the shop: and A. had given such orders to plaintiff, who resided in London, and who had, in compliance with them, sent goods to the shop, which defendant had accepted. A. absconded from the shop, came to London, verbally ordered goods, consisting of jewellery, of plaintiff, as for defendant, and took them away, saying that he was going to Lewes.—Held that, upon these facts, a jury might find that defendant had so conducted himself as to make plaintiff believe that A., whilst in defendant's employment, had authority to order goods as he did; and, on such finding, plaintiff, not having had notice of the termination of the authority, would be entitled to recover the price from defendant.

[S. C. 26 L. J. Q. B. 301; 3 Jur. N. S. 962; 5 W. R. 660. Disapproved, *Hambro v. Hull and London Fire Insurance Company*, 1858, 3 H. & N. 794. See *Hambro v. Burnand*, [1903] 2 K. B. 417; [1904] 2 K. B. 10.]

Declaration for money payable by defendant to plaintiff for goods sold and delivered, goods bargained and sold, and for money found due on accounts stated.

Pleas: 1, except as to 2l. 7s., Never indebted; 2, as to 2l. 7s., tender and payment into Court. Issues on these pleas.

On the trial, before Erle J., at the London sittings after last Hilary Term, the tender was admitted by the plaintiff; and the following facts were admitted, by both parties, as to the issue on the first plea. The defendant lived at Maida Vale, near London. He also had a [880] jeweller's shop at Lewes in Sussex, which was managed by his nephew, Abraham Solomon. The plaintiff was a jeweller carrying on business in Hatton Garden, London. He had formerly been traveller for some wholesale jewellers in London, and, as such traveller, had, at Lewes, received orders by Abraham Solomon for articles which were to be sent on defendant's credit to the shop at Lewes; and which were so sent accordingly. In November 1856, the plaintiff, being in business on his own account, received two orders by letter written from Lewes by Abraham Solomon for goods to be sent on defendant's credit to the shop at Lewes: and which were so sent accordingly. In all the above transactions Abraham Solomon acted by the defendant's authority. The second plea related to the goods furnished in compliance with the two orders last mentioned. Defendant used to attend at the shop at Lewes once a month, to check the goods with the invoices and take stock. On 7th March Abraham Solomon absconded from Lewes and came to London. On 10th March he obtained from plaintiff the goods which were the subject of the first count, stating that they were for the defendant, and that he himself was going back that afternoon to Lewes; and these goods, which consisted of jewellery, he then took into his possession, and afterwards appropriated. They were never delivered to the defendant, who was never informed of the transaction until payment was demanded by the plaintiff. On these admissions, the learned Judge was requested by the parties to draw the inference of fact; and he directed a verdict on the first issue, with leave to move as after mentioned, it being understood that the Court should have the same power as a jury to draw inferences of fact. On the second issue, verdict for defendant.

[881] H. Hawkins, in last Term, obtained a rule to shew cause why a verdict should not be entered on the first issue for defendant, "or why a nonsuit should not be entered, on the ground that there was no sale or delivery of the goods in question by the plaintiff to defendant, and no account stated, or other cause of action; that Abraham Solomon was not the agent of defendant to order or receive the goods in question, and there was no sufficient evidence of such agency to warrant the verdict."

M. Chambers and Manisty now shewed cause. There was reasonable evidence for a jury that the plaintiff was justified in assuming that Abraham Solomon had authority from the defendant to make the purchase. Plaintiff, by defendant's authority, had dealt with defendant through the nephew, exclusively; and, as the defendant lived at